SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 12
Honorable Nahal Iravani-Sani, Presiding
Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 07/01/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	22CV406880	Sriadhibhatla Chainulu vs Ajit Sanzgiri et al	Motion to Set Aside Default/Judgment Please Ctrl Click (or scroll down to) Line 1
LINE 2	24CV428712	Belen Ibanez vs Javier Ibanez et al	Motion to Compel Please Ctrl Click on (or scroll down to) Line 3
LINE 3	24CV444998	City of San Jose, a charter city vs Kim Ho et al.	Petition for Adjudication and Approval of Option Agreement by Receiver Please Ctrl Click on (or scroll down to) Line 3
LINE 4	25CV472064	Jpmorgan Chase Bank, N.a. vs Sukhjeev Singh	Motion to Set Aside Default/Judgment Please Ctrl Click (or scroll down to) Line 4
LINES 5 - 6	25CV476569	Greg Gianotti vs Salacup Nardito et al.	Demurrer & Motion to Strike Please Ctrl Click (or scroll down to) Line 5
LINE 7	25CV479084	Sandeep Pal vs Denodo Technologies Inc.	Petition Compel Arbitration Please Ctrl Click on (or scroll down to) Line 7
LINE 8	25CV47984	Pedram Bigdeli et al. vs Jaguar Land Rover North America, LLC	Hearing: Petition Compel Arbitration Please Ctrl Click on (or scroll down to) Line 8

Calendar Line 8
Case Name: *Pedram Bigdeli et al. v. Jaguar Land Rover North America, LLC*
Case No.: 25CV479845

In this Song-Beverly Warranty Act case, Defendant Jaguar Land Rover North America, LLC ("Defendant") moves to compel arbitration against Plaintiffs Pedram Bigdeli and Teraneh Zafarbod ("Plaintiffs") based on the Passport to Service contained within the Owner's Manual that accompanied the sale of the vehicle, a 2024 Range Rover ("Subject Vehicle"). After reviewing Warranty, the court concludes the motion should be denied.

The Owner's Manual

The vehicle warranty upon which Plaintiffs bring this action contains a two-page arbitration clause. It provides in relevant part, "any claim or disputes between us . . . related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to . . . the failure to conform a vehicle to warranty . . . shall be resolved by binding arbitration at either your or our election, even if the claim is timely filed in a court of law." It goes on for another page, toward the end of which it states: "This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16." The Owner's Manual is not signed and there is no evidence that Plaintiffs were made aware of the text of the warranties in this document or the arbitration provision contained therein before purchasing the Subject Vehicle.

Under the Federal Arbitration Act ("FAA"), the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute as issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Mutual Assent

Here, there is no indication that Plaintiffs signed the Owner's Manual or knew of its provisions at the time of sale. Therefore, there was no mutual assent supporting a valid agreement. Under certain circumstances, including those involving an unsigned *handbook*, a contract may be void if "a party, before making the agreement, lacks reasonable opportunity to learn its terms." (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 790 [addressing arbitration provision contained in an employee handbook] [citing *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394, 421].) As noted in *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279 (*Norcia*), another case involving an unsigned brochure (entitled "Product Safety & Warranty Information"): "Even if there is an applicable exception to the general rule that silence does not constitute acceptance, courts have rejected the argument that an offeree's silence constitutes consent to a contract when the offeree reasonably did not know that an offer had been made." (*Norcia*, 845 F.3d at p. 1285 [applying "basic principles of California contract law"].)